

		and bar associations. Defendant’s counsel attempted to explain an error Plaintiff may have made and referenced a non-existent paragraph. (Demur, P.11, ¶ 2), See line number 6, on page 11, reads, ‘Id. at 609.’ Paragraph 609 does not exist.” The Court will consider Plaintiff’s failure to substantively address this cause of action as a concession to the merits of Defendant’s argument. (<i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566, <i>as modified</i> (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [holding that “by fail[ing] to address” an issue, the issue is “impliedly concede[d].”]; and <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].) The demurrer to the twelfth cause of action is for violation of Consumers’ Legal Remedies Act pursuant to Civil Code section 1750 is <i>SUSTAINED WITHOUT LEAVE TO AMEND.</i> 13. THIRTEENTH CAUSE OF ACTION VIOLATION OF THE GLB ACT Plaintiff’s thirteenth cause of action is for violation of the GLB Act. Plaintiff alleges that “Defendant did not sell the boat as a single unit, falsified the sale date, sale price, and reported false delinquency to harass, disturb, and destroy the consumer.” (SAC, ¶ 166.) The Court is persuaded by Defendant’s citation to <i>Luminate Home Loans, Inc. v. Better Mortg. Co.</i>, 2026 U.S. Dist. LEXIS 94634, at *23 (S.D. Cal. Apr. 29, 2026), which holds that “there is no private cause of action under the Gramm Leach Bliley Act.” (<i>Id.</i> [citing <i>Mendelsohn v. Capital Underwriters, Inc.</i>, 490 F.Supp. 1069, 1079-80 (N.D.Cal.1979); see also <i>Earle v. Aramark Corp.</i>, 2005 U.S. Dist. LEXIS 65409, 2005 WL 473675 at *3 (N.D.Tex. Feb.28, 2005)].) As such, the Demurrer to the thirteenth cause of action is for violation of the GLB Act is <i>SUSTAINED WITHOUT LEAVE TO AMEND.</i> ***As to the causes of action where a final leave to amend was granted, any amended pleading to be filed and served <u>within 30 days</u>. Clerk to give notice.
6.	30-2024-01422830 Prieto vs. Ocean Investment Group, LLC	1. Motion for Leave to File Amended Complaint 2. Order to Show Cause 3. Order to Show Cause re: Dismissal for Failure to Proceed Motion for Leave to file Second Amended Complaint is DENIED without prejudice. There is no Answer on file with the Court. As such, leave of court to file an amended complaint does not appear necessary. [Code Civ. Proc., § 472(a).] Plus, Plaintiff requests leave to file a “Second Amended Complaint”; yet, no First Amended Complaint has been filed herein. [See ROA 9] Additionally, Plaintiff fails to identify by page, paragraph, and line number any additions to and deletions from the prior pleading. [CRC 3.1324(a)(2), (3)].

		Plus, Plaintiff seems to suggest she is just adding DOE defendants and alter ego claims, however, Plaintiff is also attempting to add a 7th cause of action for Violation of California Civil Code Section 1950.5—which she fails to mention. Moreover, the Proposed Second Amended Complaint appears to relate to facts that occurred <i>after</i> the filing of the initial complaint on 8/29/2024. [Motion, Ex.A.] Therefore, a Supplemental Pleading may be more appropriate. [CCP § 464(a).] Finally, Attorney Rochlin’s declaration is deficient and does not comply with CRC, Rule 3.1324(b). Clerk to give notice.
8.	30-2025-01515534 Cheung vs. D’Ambra	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Portions of Complaint 4. Order to Show Cause re: Appointment of Referee A first amended complaint having been filed, the Demurrer to Complaint and Motion to Strike Portions of Complaint are moot. The Case Management Conference and Order to Show Cause re: Appointment of Referee remain on calendar.
10.	30-2025-01517366 Gudino vs. Director of the Department of Motor Vehicles	1. Petition for Writ The hearing on Petitioner Julio Christian Gudino’s Petition for Writ of Mandate is <u>CONTINUED to October 1, 2026 at 1:30 p.m. in Department C34.</u> Petitioner is ordered to lodge physical media containing the exhibits referenced in ROA 33 (Petitioner’s Notice of Lodging) no later than September 18, 2026 (9 court days prior to the continued hearing date). A copy shall also be served on opposing counsel. The Court notes that Petitioner’s Notice of Lodging includes a <i>hyperlink</i>, which appears to be directed at a google drive folder. A hyperlink to a drive that is outside the control of the Court is insufficient for the purposes of creating a record, as the documents contained within the drive can be deleted, added or modified at any time. Clerk to give notice.
11.	30-2025-01476570 Nair vs. Mesias	1. Case Management Conference 2. Motion for Protective Order Defendants Mark Mesias, Joy Christine Martinez, Chrysalis Care I, LLC, Blue Wave Hospice Inc., Clearpath Foundation, Clearpath Holdings Corporation, Clearpath Management LLC, and Desert Valley Congregate Living Health Facility Inc. (“Defendants”) move for (1) a protective order to prevent the unwarranted disclosure of constitutionally protected financial information, (2) an order quashing or, alternatively, modifying the subpoenas issued by Plaintiffs to Goldman Sachs Bank USA, Citicorp North America, Inc., and JPMorgan Chase Bank, N.A., and (3) monetary sanctions of \$5,060.00 against Plaintiffs for persisting in seeking discovery that is outside the scope of permissible discovery and for employing discovery methods not in good faith.